FERRO CONSULTING ZIMBABWE (PRIVATE) LIMITED
versus
PACHAWO DHLAMINI

HIGH COURT OF ZIMBABWE
MUZENDA J
MUTARE, 2 March 2026

OPPOSED APPLICATION

Ms *T Chamwaita*, for the applicant
Ms *N. S Nyamwanza*, for the respondent

MUZENDA J:

1.0. The applicant private company approached this court seeking the following relief:

"IT IS ORDERED THAT:

1. *The respondent be and is hereby ordered to vacate from Applicant's land at stand 123 Irene Township, failure of which the Sheriff of Zimbabwe be authorized to evict the Respondent.*

1.2. *The respondent is hereby ordered to pay applicant's costs at a higher scale of attorney client."*

2.0. **Background Facts**

2.1. The applicant acquired the Remaining Extent of Irene Township, measuring **204 8474** hectares from a title holder company called Courtenay Dale Rhodesia (Private) Limited (In liquidation) and got title on 20 June 1999 under Deed of transfer **No. 6947/99**.

2.2. When applicant purchased the property, there were 12 occupants who had allegedly "*purchased*" from the previous occupier, various sizes of land, unfortunately that erstwhile occupier held no title deed. The respondent was among the 12. After applicant acquired title, it engaged all the 12 setting out pre-conditions upon which applicant would process for each occupant title. The conditions inter-alia included roads developments and surfacing, modern water reticulation systems and storm drains, sewer systems, payment of endowment for first purchasers and other related sinking costs for a modern township. At first applicant wrote to the respondent seeking payment of USD 48 000.

2.3. The applicant held a number of consultative meetings with various stack-holders including respondent's representatives where applicant explained the funds it was demanding

principally that for each to procure title, they had to restitute applicant what it expended to have the site approved for establishment of a recognised township. Out of the twelve occupants, applicant reached an out of court settlement with ten (10) occupants. Two protested and out of the two protestants is the now respondent. Applicant now seeks respondent's eviction with costs.

3.0. Respondent is vehemently opposing the application. As had become a custom he raises preliminary objections.:

3.1. that the applicant used a wrong form. Applicant ought to have proceeded by way of action than an application or motion.

3.2. that there is material dispute of facts which are incapable of resolution on paper.

3.3. that applicant committed a non-joinder by failing to join estate late Daniel Kasambira, the seller of stand 123 as a party to the proceedings.

3.4. the applicant unnecessarily joined the Sheriff of Zimbabwe.

3.5. that applicant's application had prescribed, since the cause of action arose in 2009, a number of years have passed.

The respondent prayed for the dismissal of the application with costs at a higher scale.

4.0. In response to respondent's points *in limine* applicant dismissed and denied existence of material dispute of facts. To the applicant the fundamentals of the application strongly lay on the title deeds and nothing else of material significance, and to that extent respondent holds none that amount to a real right. Applicant perceives legal basis for joining estate late Daniel Kasambira's estate to the proceedings on the misjoinder of the Sheriff, applicant correctly conceded and eventually withdrew the application against the Sheriff. On the aspect of prescription, applicant averred that, that objection was ill-taken by the respondent, moreso where respondent failed to provide comprehensive computation of the prescription period, the respondent's pleadings were framed by the applicant to lack sufficient detail. Applicant urged the court to dismiss the points *in limine*.

5.0. In its answering affidavit applicant in turn took a counter-objection to respondent's opposing affidavit. Applicant posed two points *in limine*, the first one being that the deponent of respondent's affidavit did not disclose her relationship to the respondent so as to convince the court that she was well versed with facts she took oath for. Otherwise to the applicant her evidence amounts to hearsay. The second objection related to identity of the Notary Public

who notarized the Special Power of Attorney which empowers the appearer to stand for the respondent. That special power of attorney was notarized by none other than the legal practitioner representing the agent appointed by the respondent. Applicant moved the court to declare respondent non-suited and treat the application as unopposed.

6.0. Caught off guard, respondent submitted in his heads stating that there was nothing irregular about the opposing affidavit and special power of attorney. Respondent then added some flesh to the founding affidavit explaining that the agent or deponent to the opposing affidavit was a sister-in-law to the respondent and as such was well placed to state facts pertinent to the matter. On notarization of the special power of attorney, respondent stated that the lawyer notarized the special power of attorney before she was engaged to represent the respondent. There is however no supporting affidavit for the lawyer to explain this invidious position. In any case respondent went on further that in the event of this court impugning the notarization of the special power of attorney by respondent's lawyer, the court should not treat the matter as unopposed but may remove the matter from the roll. It is not clear which matter would be removed from the roll, the opposing papers or the main application.

7.0. **Ruling on preliminary points of both parties**

7.1. Where judged from pleadings filed of record that there are disputed facts, naturally a judge or court may refer the matter to trial ordering that pleadings filed of record up to the date when the opposed matter was heard be treated as summons commencing action and opposing affidavit treated as defendant's plea. Alternatively, a court may entertain oral evidence. The entire discretion rests on the judiciary officer. However, where the applicant was fully cognisant of the apparent dispute of facts, the court may order applicant to pay costs. The respondent in raising the points *in limine* moved the court to uphold the objections and proceed to dismiss the applicant's application. It is not clear on which specific point respondent sought applicant's application to be dismissed.

7.2. The issue before this court pertains to eviction and right of occupation by the respondent on titled land. Respondent did not confide in court as to what facts are in dispute in his opposing affidavit. Is it question of title? Is it the agreement of sale between respondent and Professor Kasambira's estate? What are the facts that need oral evidence? I could not find any to justify

a conclusion that there is apparent dispute of facts. (See the case of *Supa Plant Investments P/L* v *Chidavaenzi* HH 92/09).

7.3. Respondent also objected to the non-joinder of the estate late Kasambira. Applicant has no causal connection to the agreement of sale between respondent and nor Kasambira nor his estate. What applicant wants is that respondent is occupying its property without applicant's blessing. It therefore defies logic why applicant was expected by respondent to join estate late Kasambira.

7.4. On the aspect of applicant's counsel that respondent simply threw bare scanty facts on the table without providing details of the aspect of prescription. In other words, is respondent stating that he had been in occupation for more than 30 years? What date should be the cut off date? A litigant raising prescription should provide adequate details of computation to enable the other party to comprehensively respond. Respondent falls far too short to meet this requirement in his opposing affidavit.

7.5. The applicant on the other vain impugns respondent's opposing affidavit alleging lack of depth in justifying why the deponent stands in the shoes of the respondent. Both parties cited laws. Respondent responding to the point *in limine* explained belatedly of course, that the deponent is a sister-in-law to the respondent. That bonus explanation finds favour with the court and without knowing to what extent a sister-in-law would know a brother in law's transactions, I do not see anything amiss about the nature of evidence the deponent provided to this court. The quality of the information is capable of being relied upon by this court to resolve the dispute before it.

7.6 Applicant correctly impugns the notarization of the special power of attorney which was signed by Ms *Nyamwanza*. Respondent explained that the lawyer at the time of notarization was not yet respondent's legal practitioner. However, it is desirable for the respondent to have obtained an affidavit from the lawyer confirming that position. It is not adequate for a litigant to just state facts on behalf of a lawyer whose conduct is brought to question. The ideal scenario is that an independent Notary Public should authenticate or notarize the Special Power of Attorney. However, for purposes of focusing on the issue in dispute, applicant does not suffer any prejudice if this court accepts the validity of the special power of attorney authorizing the deponent to represent the respondent.

8.0. Out of all the points *in limine* raised in their status and format none of the seven *points in limine* is capable of disposing the issue in dispute between the parties. None if upheld by this court is capable of bringing the application to permanent finality before this court. Applicant sued respondent for eviction, if this court rejects respondent's papers and treat the application as unopposed respondent is free to go and rectify his papers and apply to rescission. The matter would therefore remain unresolved. This is therefore an appropriate case where all points *in limine* and counter-objections do not have merit, they are all dismissed and I allowed parties to address me on merits.

9.0. **On Merits**

9.1. The respondent's pith of argument is that he bought stand Irene Township from Dr Kasambira for Z350 000 in 2000. It is interesting to note the contents of Clause 5 of this Agreement of Sale.

"5(i) The property has NO title deed registered and was acquired in that legal state thereby is being sold the same"

Clause 5(viii) adds:

"5(viii) The seller and buyer have good rights full power and absolute authority to enter into this agreement of sale."

What rights were sold to the respondent in 2000? Applicant submitted that nothing meaningful emanates from this contract or agreement. Respondent thinks otherwise stating that he became "owner" of stand 123 Irene Township when he "purchased" it from Dr Kasambira. The agreement itself vindicates the applicant. Respondent bought a property which did not have title. The legally recognised title holder is the applicant. Respondent never acquired any real rights recognizable at law as being enforceable against third parties. Dr Kasambira did not own Stand 123 Irene Township, maybe he bought the improvements threat but did not acquire registered title.

9.2. In the case of *Takafuma* v *Takafuma* 1994 (2) ZLR 103 (S) per MCNALLY JA at p 105 H-106 A, the learned Judge of Appeal emphasised the obvious as follows:

"*The registration of rights in movable property in matters of the Deeds Registry's Act (Cap 29) is not a mere matter of form. Nor is it simply a device to confound creditors or the tax authorities. It is a matter of substance. It conveys real rights upon those in whose name the property is registered.*

See definition of "real right" in s 2 of the Act. The real right is ownership or jus in re propria, is the sum total of all the possible rights in a thing."

9.3. The applicant holds title over the entire area of Irene Township and respondent occupied a portion in applicant's property measuring 1, 3289 hectares without the blessing of the applicant. Inherent in the nature of ownership is that possession should normally be with the owner. Respondent does not have a right enforceable against the applicant. Respondent can only remain in occupation if he regularizes his occupation with the title holder. Applicant has managed to prove on a balance of probabilities that it owns stand 123 Irene Township and that respondent is in occupation without the consent of the owner. The parties have reached settlement and the deed of settlement will guide the parties accordingly.

Applicant's Legal Practitioners, *Mangwana and Partners*

Respondent's Legal Practitioners, *Nyamwanza and Associates*